COGS OF AUSTRALIA FOUNDATION

COG$™ — Community Owned Gold and Silver™ / Community Operated Governance Structure™

PARTNERSHIP AGREEMENT

Joint Venture Cryptographic Governance, Resource Management and Distribution System

The Supreme Governing Agreement of the Joint Venture Partners

Governing Law: South Australia, Australia
Drake Village, NSW 2469 | Wahlubal Country, Bundjalung Nation

RECITALS

(A) The COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust (the CJVM Hybrid Trust) is constituted by the CJVM Hybrid Trust Declaration (the Declaration). The Declaration and the Sub-Trust Deeds A, B, and C, below it in the instrument hierarchy, record the constitutional rules under which the trust operates.

(B) The CJVM Hybrid Trust is a Joint Venture Cryptographic Governance, Resource Management and Distribution System. The Partners are carrying on business in common with a view to mutual benefit — community benefit, environmental stewardship, and governance of resources. Each Partner contributes their membership consideration (which funds the setup and maintenance of the Partners' Management Infrastructure, including hardware and software), their active participation in governance, their engagement in identifying and researching potential and existing Partners Asset Pool holdings, and their collective direction of the trust's operations. The Partners are not passive investors in a managed fund. They are the operators of the trust. They implement and run the trust's day-to-day operations through their own proprietary cryptographic governance, resource management, distribution, communications, and record keeping systems, which they build, maintain, vote on, and control. From the date of execution, the Partners exercise operational control through an online cryptographic database system with SHA-256 hash records for every action, designed to seamlessly transfer to the proprietary blockchain when the physical infrastructure is deployed. The Partners' Independence Vault Wallets are active from day one and are perpetually under development as the needs and desires of the Partners evolve. The online cryptographic database system is itself the Partners' operational control system from the date of execution — not a temporary arrangement or a system controlled by the Trustee. The SHA-256 hash records are generated for every Partner-initiated action and are independently verifiable by any Partner through their Independence Vault Wallet.

(C) The Declaration and Deeds contain the current rules of the trust. The Partners are responsible for implementing those rules in their proprietary smart contract system. The Partners may also, through their governance system, amend any non-entrenched operational rule as they see fit. The entrenched provisions of the Declaration are the constitutional foundation on which the Joint Venture is formed and cannot be altered except by the procedure in Declaration clause 35A.

(D) The Trustee is the key-holder of the trust safe. The Trustee holds legal ownership of trust property, owes fiduciary duty to the Partners, and is the legal representative responsible for regulatory compliance, entering into external contracts, processing fiat income, and defending the trust. The Trustee's role as a signatory to the central Hybrid Trust Vault (the Partners Vault) is specifically to ensure the security of the Partners' assets in the Trustee's capacity as the legal title holder of all assets in the Vault. The Trustee is obligated to perform all multisignature functions at the behest of the Partners, except where doing so would require the Trustee to breach its fiduciary duty or applicable law. The Trustee's multisignature role does not diminish the Partners' day-to-day operational control. All other operational execution is coordinated by the Partners through their proprietary systems, and the Partners may operate the trust in all other ways as they see fit.

(E) This Agreement is the supreme governing agreement of the Joint Venture Partners. It is made on the basis that the Declaration and Sub-Trust Deeds record and implement the Partners' agreed rules. In the event of any inconsistency between this Agreement and the Declaration or any Sub-Trust Deed, this Agreement prevails and the Trustee must amend the Declaration or Deed accordingly.

(F) This Agreement is brought into force by the wet ink signature of the founding Partner on the founding paper copy. Every subsequent person becomes a party to this Agreement by acquiring a Beneficial Unit and the corresponding COG$ Token. Where acquisition occurs through the Foundation's website or digital platform, acceptance is evidenced by the Partner's electronic acknowledgement and the cryptographic acceptance record permanently embedded in their Personal S-NFT COG$ token at the moment of minting. The S-NFT token itself is the Partner's evidence of membership and acceptance of this Agreement on equal terms with all existing Partners.

PART 1 — FORMATION OF THE JOINT VENTURE AND THE ENTRENCHED FOUNDATION

1.1 By acquiring a Beneficial Unit and the corresponding COG$ Token, each Partner agrees to the entrenched provisions of the Declaration (clause 35) as the constitutional foundation on which the Joint Venture is formed. These provisions are not negotiable, not variable, and not subject to Partner amendment except through the procedure in Declaration clause 35A. They are the bedrock of the partnership.

1.2 The instrument hierarchy of the Joint Venture is:

(a) First: This Agreement — the supreme governing instrument. All other instruments are subordinate to this Agreement. The Declaration must be administered in accordance with this Agreement.

(b) Second: The Declaration and, below it, the Sub-Trust Deeds A, B, and C — the legal trust administration instruments, maintained by the Trustee at the direction of the Partners. In the event of inconsistency between a Sub-Trust Deed and the Declaration, the Declaration prevails.

(c) Third: The Partners' Smart Contract System — the operational implementation of the Partners' rules, controlled by the Partners.

1.3 The Declaration is the legal instrument that gives the Partners' Joint Venture legal effect in the Australian trust law system. It is maintained by the Trustee as a record of the Partners' agreed rules. It is not an independent source of authority over the Partners. The Trustee must administer the Declaration in accordance with this Agreement. The Trustee must not rely on any provision of the Declaration to override, delay, or refuse to implement a valid direction of the Partners under this Agreement, except where compliance would require the Trustee to breach applicable law.

1.4 The Partners may, by Special Resolution, direct the Trustee to amend the Declaration or any Sub-Trust Deed to give legal effect to any decision of the Partners under this Agreement. The Trustee must execute such amendment within 30 days of the direction.

1.5 The Partners establish the following entrenched founding principles as the constitutional foundation of the Joint Venture. These principles are recorded in the Declaration for legal effect, but they originate from and are controlled by this Agreement. The Declaration implements these principles; it does not create them. By acquiring a Beneficial Unit and COG$ Token, each Partner agrees to these principles as the bedrock of the partnership.

(a) The Foundation objects and Partners governance principles (Declaration Part 2), including the objects in clauses 4.1–4.15 governing resource stewardship, in-ground mineral value recognition, ESG engagement, First Nations custodianship, and the social justice mechanism.

(b) The CJVM Hybrid Trust structure, the three ring-fenced sub-trusts, and the continuing trusteeship structure (Declaration Part 2A, clauses 1.2–1.8).

(c) Direct CHESS registration of Sub-Trust A shares — no intermediaries (Declaration clause 35(d)).

(d) One Partner, one vote for national governance decisions — S-NFT holders (Declaration clause 11.1, clause 35(e)).

(e) The anti-capture cap of 1,000,000 Units across all classes (Declaration clause 35(f)).

(f) The dividend splits: 50/50 Beneficiary Distribution Stream; 50/25/25 Donation Dividend Stream; and the $2.00 direct Sub-Trust C payment per Donation COG$ (Declaration clause 35(g)).

(g) The soulbound nature of Personal S-NFT COG$ (Declaration clause 35(i)).

(h) The 12-month Stewardship Season lock period on ASX COG$ (Declaration clause 35(j)).

(i) The prohibition on fiat sale, fiat redemption, or exchange listing of any COG$ Token or Unit (Declaration clauses 35(v) and 35(w)).

(j) The 3-of-Board cryptographic multisignature requirement for all Partners Vault operations (Declaration clause 35(t)).

(k) The First Nations Advisory Council, the FPIC obligations, and the ICIP protections (Declaration clauses 33A–33D, clause 35(l) and 35(m)).

(l) The Poor ESG activist mandate — minimum 5% shareholding in Poor ESG targets (Declaration clause 35(r)).

(m) The permanent, non-disposable Partners Asset Pool (Declaration clause 35(z)).

(n) The social justice mechanism — one Sub-Trust B income unit per S-NFT and kS-NFT (Declaration clause 35(q)).

(o) The fixed membership fees: $4.00 Personal S-NFT; $1.00 Kids S-NFT (Declaration clause 35(x)).

(p) The Foundation's right to develop, own, and operate its own Partner-controlled blockchain infrastructure (Declaration clause 35(aa)).

(q) The automatic zero-cost Landholder COG$ issuance entitlement for LALCs and Prescribed Bodies Corporate.

1.6 The entrenched founding principles may only be amended by: (a) Special Resolution (75%) of S-NFT holder Partners through a Partners Poll under Part 6 of this Agreement; followed by (b) the Trustee updating the Declaration in accordance with clause 1.4. The procedure in Declaration clause 35A records the legal mechanism; the authority originates from this Agreement.

1.7 This Agreement is governed by the law of South Australia, Australia. Terms defined in the Declaration have the same meanings in this Agreement unless separately defined.

> Approved Ledger Infrastructure means any distributed ledger, blockchain, permissioned consensus network, proprietary community consensus protocol, or hybrid cryptographically secured record-keeping system approved from time to time for the Joint Venture's governance, registry, vault, token, and record functions. It includes the Partners Consensus Network and may include interim or component implementations. Nothing in this Agreement or the Declaration binds the Foundation or the Partners to any single vendor, protocol, or third-party infrastructure. The Foundation retains the right to develop, own, operate, and migrate to Partner-controlled infrastructure, provided the 3-of-Board cryptographic authorisation requirement and governance-record integrity are maintained.
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> Expansion Day has the meaning given in the Declaration — the date on which the Partners activate the [Gundoo Ngiri] Sovereign Node on the Partners Consensus Network, as certified by the Board and endorsed by the FNAC. Expansion Day requires nothing beyond the will of the Partners and the operational readiness of the Node. No external approval or regulatory confirmation is required.
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> Partners Consensus Network means any consensus protocol, distributed ledger network, or cryptographic state machine developed, operated, or controlled by the Foundation (alone or in collaboration with community partners), hosted on infrastructure owned by or under the sovereign control of the Foundation or its Partners, and approved by the Board as Approved Ledger Infrastructure. The Partners Consensus Network is not required to be compatible with any third-party protocol, public blockchain, or commercial provider. 1.8 Partnership Characterisation. The Partners are carrying on business in common with a view to mutual benefit within the meaning of partnership law. Each Partner contributes: (a) their membership consideration, which is applied to the establishment and maintenance of the Partners' Management Infrastructure (including hardware, software, and cryptographic governance systems); (b) their active participation in governance through Partners Polls and their Independence Vault Wallets; (c) their engagement in researching, identifying, and monitoring Partners Asset Pool holdings; and (d) their collective direction of the trust's operations through the Partners' proprietary cryptographic systems. The relationship between the Partners is one of mutual obligation and governance, not passive investment. Partners owe duties to each other and to the Joint Venture. The Trustee acts at the direction of the Partners for all operational matters, with independent authority only for legal compliance, fiduciary obligations, and external representation. The CJVM Hybrid Trust is excluded from the managed investment scheme definition in section 9 of the Corporations Act 2001 (Cth) on three independent bases: (i) the Partners exercise day-to-day control over the operations of the trust through their proprietary cryptographic governance, resource management, distribution, communications, and record keeping systems — the third limb of section 9 is not satisfied; (ii) the structure is a genuine joint venture partnership in which Partners carry on business in common and are not passive contributors to a pooled fund; and (iii) the COG$ Tokens are governance, membership, and community participation instruments within the Joint Venture and are not financial products offered to the public — no token may leave the Partnership by secondary sale, fiat redemption, or exchange listing (entrenched cl.1.5(i)).

PART 2 — THE PARTNERS' PROPRIETARY SMART CONTRACT SYSTEM

2.1 The Partners own, build, operate, and control the proprietary cryptographic smart contract management and distribution system (the System) through which the Joint Venture's day-to-day operations are conducted. The System is the Partners' operational instrument. The Declaration is the legal instrument. Where the System implements a rule approved by the Partners through Partners Poll, that rule has the same force as if it were written into the Declaration, and the Partners must direct the Trustee to update the Declaration accordingly at the next practicable opportunity.

2.2 The System comprises:

(a) The Approved Ledger Infrastructure: the technology-neutral distributed ledger, consensus network, and record-keeping system approved by the Board from time to time under this Agreement and the Declaration, being the constitutional source of truth for token records, governance outcomes, operational state, and Partner acceptance records. The Approved Ledger Infrastructure includes the Partners Consensus Network and may include any other system meeting the definition in clause 1.7. No single vendor, protocol, or third-party infrastructure is constitutionally mandated.

(b) The Partners Vault (the central Hybrid Trust Vault): the on-chain treasury and authorisation system controlled by the 3-of-Board multisignature mechanism, through which all token minting, transfer, cancellation, zone update, governance registry operations, and Partner acceptance records are executed and stored. The Partners Vault holds all trust assets and is the sole authority for minting and registry operations. The 3-of-Board multisignature requirement applies exclusively to the Partners Vault. Until the Approved Ledger Infrastructure is operational, the Caretaker Trustee may perform Partners Vault functions in the most practicable and fiduciary manner available, documented and auditable, in compliance with the Declaration and applicable law.

(c) The Independence Vault Wallets: each Partner's individual cryptographic wallet, through which the Partner exercises governance rights, views balances, initiates transfers, casts votes, accesses their acceptance record, and participates in the operations of the Joint Venture. Each Independence Vault Wallet is autonomously operated by the individual Partner. No Board authorisation or multisignature approval is required for a Partner to operate their own Independence Vault Wallet. The 3-of-Board multisignature requirement applies exclusively to the Partners Vault (the central Hybrid Trust Vault), not to individual Independence Vault Wallets.

(d) The smart contracts: the programmatic rules that encode the Joint Venture's operational requirements into executable blockchain logic, including token issuance gates, transfer restrictions, distribution calculations, per-hectare limits, class swap logic, governance poll mechanics, atomic acceptance-and-minting sequences, and the permanent embedding of cryptographic acceptance records into S-NFT token metadata at the moment of minting under clause 8.1A(c).

(e) The web and application interfaces: the Partner-facing platform at cogsaustralia.org and any approved mobile or desktop applications through which Partners interact with the System, complete their registration, and execute their electronic acceptance of this Agreement.

(f) Technology Implementation Note. The Partners may implement the Approved Ledger Infrastructure using any technology approved by the Board, including as an early-phase or component implementation a Hyperledger Besu permissioned blockchain network or any successor or alternative protocol. The use of Hyperledger Besu as an implementation component does not alter the technology-neutral character of the Approved Ledger Infrastructure as defined in clause 1.7. The Partners may resolve by Partners Poll to migrate the System to any other Approved Ledger Infrastructure, including the Partners Consensus Network, without amending this Agreement.

(g) The public audit anchor: periodic state-root or checkpoint anchoring to Ethereum mainnet for public auditability of governance outcomes, vote result proofs, Partner acceptance records, and major trust operations.

(h) The Transitional Operational Infrastructure: from the date of execution until the Approved Ledger Infrastructure is fully operational, the Partners' operational control is exercised through the Foundation's online cryptographic database system, which includes: (i) the web platform at cogsaustralia.org through which Partners register, manage their Independence Vault Wallets, initiate governance actions, and access their records; (ii) a cryptographic hash record generated by the SHA-256 algorithm for every Partner-initiated action, stored immutably in the operational database and independently verifiable; (iii) the Independence Vault Wallets, which are live and operational from the date of each Partner's admission; and (iv) the governance poll mechanism through which Partners propose, deliberate on, and vote on operational matters. The Transitional Operational Infrastructure is the Partners' operational control system. It is not a placeholder, simulation, or interim arrangement pending the deployment of different technology. It is the first implementation of the Partners' proprietary cryptographic governance system, designed to evolve seamlessly to the Approved Ledger Infrastructure without interruption to Partner control. The deployment of blockchain technology is a technology upgrade, not the commencement of Partner control.

2.3 The Partners govern the System through Partners Polls. No change to smart contract logic may be deployed without Partner approval, except emergency security patches which must be ratified by Partners Poll within 14 days.

2.4 The System is the proprietary property of the Joint Venture. No third-party provider may acquire control over the System or create a dependency that prevents the Partners from migrating to alternative infrastructure. Any agreement that would have such an effect is void (entrenched principle 1.5(p)).

PART 3 — IMPLEMENTING AND AMENDING THE RULES OF THE JOINT VENTURE

Implementing the Current Rules

3.1 This Agreement establishes the Partners' authority to set, implement, and amend the operational rules of the Joint Venture. The Declaration and Sub-Trust Deeds currently record the initial rules as agreed by the Partners at formation. The Partners are responsible for implementing those rules in the System's smart contracts, faithfully, transparently, and verifiably.

3.2 The following rules from the Declaration and Deeds must be implemented in the System (non-exhaustive):

(a) Token issuance gates and conditions (Declaration Schedule 9, Part A).

(b) Transfer restrictions: fiat sale prohibition, soulbound S-NFT, P2P rules (gift/goods/services only, no fiat, 3-of-Board multisig), class-specific conditions.

(c) Distribution calculations: 50/50 split, Donation Dividend Stream 50/25/25, proportional per-unit formula.

(d) Per-hectare COG$ limits: 1,000 COG$/hectare for Landholder tokens.

(e) Anti-capture cap: 1,000,000 Units per person or entity.

(f) Governance voting: one-Partner-one-vote, BNFT limited voting, Local Decision Votes with Residential Weighted Votes, Aggregate Unitholder Direction for proxy voting.

(g) Lock periods: 12-month Stewardship Season on ASX COG$.

(h) 3-of-Board multisignature for all Partners Vault operations.

(i) Electronic register of Beneficial Unit Holders.

(j) Partner acceptance records in accordance with clause 8.1A.

3.3 The Partners must verify through independent technical audit that deployed smart contracts faithfully implement the current rules before the System processes any live transaction. First audit before Governance Foundation Day. Annual audits thereafter and after any material upgrade.

Amending Operational Rules

3.4 The Partners may amend any non-entrenched operational rule of the Joint Venture through their governance system. This is the Partners' right as the operators of the Joint Venture. The Trustee has no veto over operational amendments that do not require the Trustee to breach applicable law.

3.5 Operational rules that Partners may amend include (non-exhaustive):

(a) Smart contract parameters not entrenched — voting periods, quorum thresholds above Declaration minimums, deliberation periods, notification timeframes, interface design.

(b) Operational procedures for token reservations, P2P transfers, class swaps, donation conversions.

(c) Communications infrastructure and platform features.

(d) Record keeping format, reporting frequency, transparency standards above Declaration minimums.

(e) New portfolio company target selection for the Partners Asset Pool.

(f) ESG engagement strategy and priority targets.

(g) Operational budget and administrative fund allocation within the Declaration framework.

3.6 Amendments are made by Partners Poll:

(a) Ordinary Resolution (simple majority) — routine operational changes, feature deployments, interface updates, advisory matters, new target selections.

(b) Special Resolution (75% of S-NFT holders) — amendments to this Agreement; amendments to the Declaration; changes to smart contract architecture; Trustee appointment or removal; and any matter the Declaration reserves to Special Resolution.

3.7 No Partner amendment may contravene an entrenched founding principle. Any purported smart contract change that would circumvent an entrenched principle is void. The System must include automated safeguards to prevent deployment of logic that would breach entrenched principles, to the extent technically feasible.

3.8 An operational amendment takes effect when: (a) the Partners Poll result is declared; and (b) the amended smart contract logic is deployed to the System. The amendment is operative from the date of deployment, not from the date the Declaration is updated. The Trustee must update the Declaration and/or Deeds to reflect the amendment within 30 days. The Declaration update is a recording function, not an approval function.

3.9 If the System's smart contract logic is found to be inconsistent with this Agreement or the entrenched founding principles, this Agreement prevails and the Partners must correct the System. If the Declaration is found to be inconsistent with a valid Partners Poll outcome recorded in the System, the Partners Poll outcome prevails and the Trustee must amend the Declaration accordingly.

PART 4 — PARTNER OPERATIONS

4.1 Subject to the entrenched foundation and applicable law, the Partners have full operational authority over the Joint Venture. The Partners collectively decide how the trust is run, how its smart contract systems are designed, how its resources are managed, how its governance is conducted, and how its records are kept. Without limiting the generality of this authority, the Partners' day-to-day operational functions include: identifying potential assets for the Partners Asset Pool; researching future acquisitions; monitoring and engaging with current operations of existing shareholdings; developing, building, testing, and operating the blockchain and cryptographic governance infrastructure; operating and evolving the Independence Vault Wallet system; managing all internal communications; and all other functions necessary for the conduct of the Joint Venture. These functions are exercised by the Partners, not the Trustee. From execution, these functions are performed through the Partners' online cryptographic database and SHA-256 hash record system, which constitutes the Partners' operational infrastructure and is designed to seamlessly transfer to the proprietary blockchain when physical infrastructure is deployed. The Trustee must maintain and publish to Partners a quarterly operational activity log demonstrating: (a) the number of Partner-initiated governance proposals submitted through the System; (b) the number of Partners Polls conducted and their outcomes; (c) the number of Partner-initiated transfers, reservations, and token operations processed; (d) the aggregate number of Independence Vault Wallet sessions in the period; and (e) the SHA-256 hash record count for the period. This log is evidence of the Partners' ongoing exercise of day-to-day operational control.

4.1A Day-to-Day Operational Control. The Partners exercise day-to-day control over the operations of the Joint Venture through two distinct and complementary mechanisms:

(a) Continuous Individual Operational Capacity — each Partner, through their Independence Vault Wallet, autonomously and without Trustee involvement: views their holdings and the state of the Partners Asset Pool in real time; initiates P2P transfers of eligible tokens; submits governance proposals at any time; monitors and engages with portfolio company ESG performance; accesses the complete governance record and SHA-256 hash attestations; manages their distribution election preferences; and exercises all other functions available through the System. These functions are exercised individually, continuously, and without requiring any other Partner's or the Trustee's permission or participation.

(b) Collective Governance Authority — Partners collectively, through Partners Polls: direct the investment mandate of the Partners Asset Pool; set and amend the operational rules of the Joint Venture; appoint and remove the Trustee; approve or reject smart contract deployments; determine ESG engagement strategy; and make all other operational decisions of the Joint Venture.

The combination of continuous individual operational capacity and collective governance authority constitutes the Partners' day-to-day control. This control is qualitatively different from the right to be consulted or to give directions. Partners do not instruct the Trustee to operate the scheme on their behalf. Partners operate the Joint Venture directly through their own proprietary systems. The Trustee performs only the limited security authentication and legal compliance functions defined in Part 5.

4.2 Governance. Partners exercise all governance authority through Partners Polls via the System. S-NFT holders hold national governance authority (one person, one vote). Kids S-NFT holders carry a proxy vote exercised by parent or guardian. B-NFT holders vote only on Trustee structure matters. Partners propose, hold, govern, and conclude their own meetings, polls, proposals, and communications. The Trustee does not convene or control Partner governance proceedings.

4.3 Trustee Appointment and Removal. Partners appoint, remove, and replace the Trustee by Special Resolution (75%). The Trustee serves at the direction of the Partners. This is the defining characteristic of the Joint Venture.

4.4 Investment Direction. Partners direct the Partners Asset Pool investment mandate. This includes target company selection, ESG engagement strategy, and proxy voting at portfolio company meetings through the Aggregate Unitholder

Direction mechanism (Declaration clause 13A). The Trustee executes investment instructions; the Trustee does not exercise independent investment discretion.

4.5 Resource Management. Partners manage the Partners Asset Pool through the System. Token reservations, P2P transfers, class swaps, donation conversions, and all token-layer operations are Partner-initiated and Partner-controlled.

4.6 Distribution Verification. Partners verify distribution calculations through the System. The Trustee must publish distribution calculations not less than 10 business days before processing. Partners have 5 business days to raise discrepancies.

4.7 Communications. Partners operate their own communications infrastructure through the Foundation platform. The Trustee may publish compliance notices but does not control or moderate Partner-to-Partner communications except where required by law.

4.10 Administration and Infrastructure Fund Surplus. The membership consideration paid by each Partner is applied to the setup and maintenance of the Partners' Management Infrastructure, including hardware, software, and cryptographic governance systems. The Trustee is obliged to apply any unused administrative and infrastructure funds to purchase assets on behalf of the Partners through Sub-Trust A, not to redistribute surplus funds back to the Partners. This obligation is mandatory and reflects the non-redeemable, non-distributable nature of the Joint Venture's operating funds.

4.11 Partner Participation Obligations. Each Partner acknowledges that the Joint Venture is not a passive investment. By accepting this Agreement, each Partner undertakes to: (a) maintain their Independence Vault Wallet in active status by accessing the System at least once in any rolling 12-month period; (b) participate in the governance of the Joint Venture by engaging with Partners Polls, governance proposals, and ESG engagement activities to the extent reasonably practicable; (c) contribute to the research, identification, and monitoring of Partners Asset Pool holdings by accessing the portfolio information published through the System; and (d) comply with the operational rules of the Joint Venture as set and amended by the Partners through the System.

A Partner who fails to access the System for a continuous period of 24 months is classified as a Dormant Partner. A Dormant Partner retains all beneficial entitlements but their governance vote is suspended until they re-engage with the System. The Trustee must send a written notice to any Partner approaching Dormant status at the 18-month mark. Dormant Partner classification does not affect Sub-Trust B income unit entitlements. This clause does not create a ground for expulsion and may not be used to diminish any Partner's beneficial rights.

4.12 Not a Passive Investment. The Partners acknowledge and declare that the CJVM Hybrid Trust is fundamentally different from a managed investment scheme in the following respects: (a) In an MIS, the operator makes investment decisions and the members are passive recipients of returns. In the CJVM, the Partners collectively make all investment decisions through the Aggregate Unitholder Direction mechanism and the Trustee has no independent investment discretion. (b) In an MIS, the operator controls the scheme's systems and infrastructure. In the CJVM, the Partners own, build, operate, and control their proprietary cryptographic systems and the Trustee has no authority over the System. (c) In an MIS, members cannot remove the operator without regulatory intervention. In the CJVM, Partners can remove the Trustee by Special Resolution at any time. (d) In an MIS, the operator determines distribution policy. In the CJVM, distributions are mandatory, non-discretionary, and formula-driven — the Trustee has no discretion to vary them. (e) In an MIS, members' interests can be redeemed for cash. In the CJVM, no interest can be redeemed, sold for fiat, or listed on any exchange — the Partnership is permanently closed. (f) In an MIS, the operator typically retains earnings. In the CJVM, the mandatory surplus provision requires all unused administrative funds to be applied to the Partners Asset Pool — the Trustee may not retain surplus.

4.8 Record Keeping. The System is the Partners' primary operational record. The Trustee maintains the legal register as a parallel obligation. In the event of discrepancy, the legal register prevails pending correction, but the blockchain record is prima facie evidence of the Partner-initiated transaction.

4.9 Token Characterisation and Internal Use. Fungible digital COG$ Tokens of investment classes (including ASX COG$, Landholder COG$, Business Property COG$, and RWA COG$) are acknowledged to be financial products within the meaning of ASIC Information Sheet 225. These classes are not issued, sold, or exchanged for goods or services until after Expansion Day. From Expansion Day, all applicable disclosure obligations must be satisfied before any Tier 2 token issuance. Community COG$ (Class C) are issued from Governance Foundation Day as a means of testing and validating the operational function of the Partners Vault and the Partners' cryptographic governance infrastructure before Expansion Day, when investment-class tokens are to be distributed. Because the Joint Venture Partnership is not a managed investment scheme and no COG$ Token of any class may leave the Partnership by secondary sale, fiat redemption, exchange listing, or any other means, the classification of tokens as financial products under INFO 225 has no bearing on the use of tokens internally by the Partnership. The tokens function as internal governance, participation, and record-keeping instruments within a closed joint venture system. The Foundation draws a clear distinction between two separate regulatory inquiries: (a) whether any individual COG$ Token constitutes a financial product within the meaning of Chapter 7 of the Corporations Act — a product characterisation question that may be relevant from Expansion Day for Tier 2 tokens; and (b) whether the CJVM Hybrid Trust is a managed

investment scheme within the meaning of section 9 — a scheme characterisation question that depends on the structure and operation of the Joint Venture as a whole. The Foundation's acknowledgment that Tier 2 tokens may constitute financial products under INFO 225 does not constitute or imply any acknowledgment that the CJVM Hybrid Trust is a managed investment scheme. These are legally independent questions. A partnership may use financial products as internal instruments without the partnership itself becoming an MIS. The relevant question for section 9 is not what the tokens are, but whether the members have day-to-day control. The Partners do.

PART 5 — THE TRUSTEE'S LIMITED ROLE

5.1 The Trustee is the key-holder of the trust safe, not the operator of the trust. The Trustee's functions are limited to:

(a) Legal Ownership — holding legal title to trust property on behalf of the Partners.

(b) Fiduciary Duty — acting honestly, in good faith, and in the Partners' best interests under the Trustee Act 1936 (SA).

(c) Legal Representation — entering external contracts, executing legal documents, engaging professional advisers on behalf of the trust.

(d) Regulatory Compliance — ensuring compliance with AML/CTF obligations, Privacy Act, Trustee Act 1936 (SA), Income Tax Assessment Act 1997 (Cth), AUSTRAC, and applicable law. The Corporations Act applies to the Trustee in its general trustee and corporate governance capacity only. The CJVM Hybrid Trust is not a managed investment scheme and the Chapter 5C regime does not apply.

(e) Fiat Processing — receiving and directing fiat currency, processing distributions within 60 days.

(f) Defence — defending the trust in legal proceedings and responding to regulatory inquiries.

(g) Multisignature Execution — Security Authentication Function. The Trustee's role in operating the 3-of-Board multisignature keys for the Partners Vault is a security authentication function. The multisignature mechanism authenticates that a valid Partner request has been received and verifies the integrity of the transaction. It does not confer decision-making authority on the Trustee. The Trustee must apply its cryptographic authorisation to any valid Partner request within 5 business days. The Trustee has no discretion to withhold authorisation except where execution would require the Trustee to breach a specific provision of applicable law, identified in writing within those 5 business days. If the Trustee fails to apply its cryptographic authorisation within 5 business days and has not provided written reasons identifying the specific legal provision that would be breached, the Partner request is deemed approved and the System must execute the operation automatically without Trustee authorisation. The deemed-approval mechanism must be implemented in the smart contract logic of the Partners Vault, or in the Transitional Operational Infrastructure during the pre-blockchain period, such that Partner operations are not structurally dependent on the Trustee's active participation beyond the authentication function.

For the avoidance of doubt, the following Partner operations require no Board multisignature authorisation and no Trustee participation of any kind: (a) casting votes in Partners Polls; (b) submitting governance proposals; (c) viewing wallet balances and transaction history; (d) communicating with other Partners through the System; (e) accessing governance records and SHA-256 hash attestations; (f) electing distribution preferences; and (g) nominating heirs. These are autonomous Partner functions exercised through each Partner's Independence Vault Wallet without any Trustee involvement.

(h) Declaration Maintenance — maintaining the Declaration and Sub-Trust Deeds as the legal record of the Partners' Joint Venture, updating them as directed by the Partners through Partners Polls, and ensuring the Declaration accurately reflects the current rules of the Joint Venture as determined by the Partners.

5.2 The Trustee must not:

(a) Make investment decisions independently of Partner direction.

(b) Convene, control, or interfere with Partner governance proceedings.

(c) Exercise independent discretion over the System, smart contract logic, token operations, or resource management.

(d) Withhold, delay, or condition the execution of a valid Partners Poll result except where compliance would breach applicable law, with written reasons provided within 5 business days.

(e) Represent to any third party that the CJVM Hybrid Trust is a managed investment scheme.

(f) Refuse or delay multisignature execution of a valid Partner request without written reasons within 5 business days.

(g) Refuse to update the Declaration or Deeds when directed by a valid Partners Poll outcome, except where the amendment would contravene an entrenched founding principle established in Part 1 of this Agreement or would require the Trustee to breach applicable law.

5.3 The Trustee must publish to Partners through the System: quarterly financial reports; annual audited accounts; all material regulatory correspondence; and real-time notification of any material event affecting trust property.

5.4 Partners may remove the Trustee by Special Resolution (75%) and appoint a successor within 60 days. The Trustee serves at the direction of the Partners. 5.5 Fiduciary Duty Conflict. Where the Trustee considers that executing a valid Partners Poll direction or a multisignature request would require the Trustee to breach its fiduciary duty under the Trustee Act 1936 (SA) or applicable equitable principles, the Trustee must: (a) identify the conflict in writing to the Partners within 5 business days, specifying the fiduciary obligation engaged and the manner in which compliance with the direction would breach it; (b) engage in good faith consultation with the Partners to seek resolution, including exploring alternative means of achieving the Partners' objective without breaching fiduciary duty; (c) if the conflict cannot be resolved within 14 days, refer the matter to the Supreme Court of South Australia for directions under the Trustee Act 1936 (SA); and (d) pending resolution, preserve the status quo and take no irreversible action. The Trustee must not use fiduciary duty as a pretext to delay, obstruct, or refuse to implement valid Partner directions where no genuine fiduciary conflict exists. A pattern of unjustified refusals constitutes grounds for removal under clause 5.4.

PART 6 — PARTNERS POLLS

6.1 Partners propose, hold, govern, and conclude their own meetings, polls, proposals, and communications through the System. The Trustee does not convene, chair, or control these proceedings. Partners may submit governance proposals at any time. There is no restriction on the frequency, timing, or subject matter of Partners Polls, other than the deliberation period in clause 6.3. The Partners' governance authority is continuous and self-initiating — it is not convened, scheduled, or triggered by the Trustee.

6.2 Any 10 Partners or 1% of Partners (whichever is fewer) may initiate a Partners Poll by submitting a proposal through the System. The proposal must include: a clear description; the resolution type (Ordinary or Special); and a proposed voting period of not less than 7 days.

6.3 Every proposal must have a deliberation period of not less than 7 days before voting opens. For urgent matters, 48 hours if 20% of Partners agree.

6.4 Voting is through each Partner's Independence Vault Wallet. One eligible Partner, one vote. Recorded immutably on the blockchain. Votes may be changed before close.

6.5 Quorum: 20 Partners or 1% of Partners (whichever is greater).

6.6 Results are calculated automatically, published immediately, and are binding. The Trustee must implement within 10 business days or such period as the resolution specifies. Where the result requires a Declaration amendment, the Trustee must execute within 30 days.

6.7 Challenges within 7 days on grounds of technical failure, ineligible votes, or fraud. Determined by independent technical auditor.

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PART 7 — FIRST NATIONS PARTNERSHIP

7.1 The First Nations Advisory Council (FNAC) is a standing advisory body. Its role, composition, and standing are entrenched founding principles of this Agreement (clause 1.5(k)).

7.2 Partners must not direct any action requiring FPIC without obtaining it. A Partners Poll does not override the FPIC requirement.

7.3 The System must include safeguards against unauthorised use of ICIP.

7.4 Automatic zero-cost Landholder COG$ issuance for LALCs and PBCs is entrenched (clause 1.5(q)).

PART 8 — ADMISSION, ELECTRONIC ACCEPTANCE, AND EXIT OF PARTNERS

8.1 Admission. A person becomes a Partner and a party to this Agreement by acquiring a Beneficial Unit and the corresponding COG$ Token through any of the following:

(a) Electronic registration and payment via the Foundation's website or digital platform, including the explicit electronic acknowledgement of this Agreement required under clause 8.1A;

(b) P2P transfer from an existing Partner (gift or goods/services only — no fiat);

(c) Pay It Forward sponsorship by an existing Partner; or

(d) Automatic issuance where eligibility conditions are met (including Landholder COG$ for LALCs and PBCs under entrenched clause 1.5(q)).

In all cases, acquiring a COG$ Token constitutes acceptance of this Agreement and the entrenched foundation in Part 1 on equal terms with all existing Partners.

8.1A Electronic Acceptance and Cryptographic Record.

(a) Founding Partner — wet ink paper signature. The founding Partner enters this Agreement by signing the founding paper copy in the presence of a witness. The founding Partner's signed paper copy is the original of this Agreement and is held by the Foundation as its founding legal record. The founding Partner does not generate a cryptographic acceptance record under clause 8.1A(b) — their wet ink signature on the founding copy is their binding entry into this Agreement.

(b) All subsequent Partners — electronic acceptance and S-NFT-embedded record. Where admission occurs via the Foundation's website or digital platform, the prospective Partner must, before any S-NFT COG\$ Token is issued to them:

(i) be presented with this Agreement in full, with a download link to the current version bearing the founding Partner's wet ink signature;

(ii) actively confirm acceptance of this Agreement by checking an unambiguous acceptance checkbox or equivalent mechanism that cannot be pre-ticked or implied; and

(iii) receive a summary disclosure of the key obligations and rights of a Partner under this Agreement, including the entrenched provisions in clause 1.5.

(c) Atomic minting sequence. Acceptance and minting must occur atomically in the following sequence, without any intervening step that could separate them:

(i) Partner completes registration and KYC verification;

(ii) admission payment is received and cleared;

(iii) Partner triggers the acceptance checkbox — the System captures the acceptance data;

(iv) the System generates the cryptographic acceptance record; and

(v) the Partner's Personal S-NFT COG\$ Token is minted — with the acceptance record hash written permanently into the token's on-chain metadata at the moment of minting.

Steps (iv) and (v) must be executed as a single atomic operation. The S-NFT may not be minted without embedding the acceptance record hash, and the acceptance record must not be generated without the S-NFT being minted in the same operation.

(d) Cryptographic acceptance record content. The acceptance record generated under clause 8.1A(c)(iv) must contain the following data fields, all of which are written into the S-NFT token metadata under clause 8.1A(c)(v):

(i) the S-NFT token ID assigned to this Partner on minting — this is the primary identifier linking the acceptance record to the Partner's token;

(ii) the Partner's wallet address and Foundation member identifier;

(iii) the version number and title of this Agreement as accepted (currently: Joint Venture Partnership Agreement, Version 5.0, 15 April 2026);

(iv) a cryptographic hash of the Agreement text at the version accepted, enabling verification that the accepted version has not been altered;

(v) a timestamp of the acceptance event in UTC;

(vi) the IP address and device metadata recorded at the point of acceptance, to the extent permitted by applicable privacy law;

(vii) the Stripe payment reference or equivalent transaction identifier for the admission payment; and

(viii) a confirmation flag indicating that the acceptance checkbox was actively engaged by the Partner.

(e) Effect of the S-NFT as evidence. The Partner's Personal S-NFT COG\$ Token:

(i) is the permanent, on-chain, cryptographically verifiable record of the Partner's acceptance of this Agreement;

(ii) is accessible to the Partner at any time through their Independence Vault Wallet;

(iii) constitutes conclusive evidence, as against the Partner and in favour of all other Partners and the Trustee, that the Partner has read, understood, and accepted this Agreement on the terms recorded in the token metadata;

(iv) serves as the Partner's electronic signature and binding entry into this Agreement for the purposes of applicable law, including the Electronic Transactions Act 1999 (Cth) and the Electronic Transactions Act 2000 (NSW); and

(v) cannot be altered, deleted, or amended after minting without detection — the acceptance record embedded in the token is permanent and forms part of the immutable on-chain governance record of the Joint Venture.

(f) Database record. The Foundation's operational database must maintain a secondary record of each Partner's acceptance, including at minimum the data fields in clause 8.1A(d)(i) through (vii). This database record is a secondary legal record and must be preserved for not less than 7 years from the date of acceptance. In the event of any discrepancy between the database record and the S-NFT on-chain metadata, the S-NFT on-chain metadata prevails as the primary record of acceptance.

(g) P2P transfer, automatic issuance, and Pay It Forward. Where a Partner is admitted by P2P transfer, automatic issuance, or Pay It Forward sponsorship rather than direct website registration, a partial acceptance record covering at minimum the data fields in clause 8.1A(d)(i), (ii), (iii), (iv), and (v) must be written into the token metadata at the time of minting or transfer, and stored in the Partners Vault. A Partner admitted by these pathways is bound by this Agreement from the moment their token is recorded on-chain.

8.1B Effect of Acceptance. From the moment the cryptographic acceptance record is generated under clause 8.1A, the Partner:

(a) is a party to this Agreement and to the Joint Venture on equal terms with all other Partners;

(b) is bound by all provisions of this Agreement, including the entrenched foundation in Part 1;

(c) holds all rights conferred by this Agreement, including governance rights through the System, Sub-Trust B income unit entitlements, and the right to participate in Partners Polls; and

(d) is bound by the same obligations as all existing Partners, including the prohibition on fiat sale or redemption and the prohibition on actions that would breach the entrenched foundation.

8.1C Version of Agreement Accepted. The System must maintain a record of the version of this Agreement accepted by each Partner. Where this Agreement is amended in accordance with clause 10.1, existing Partners are bound by the amendment from the date it takes effect. New Partners joining after an amendment are presented with and accept the then-current version. The cryptographic acceptance record records the version number at the time of acceptance for each Partner individually.

8.2 Exit. A Partner exits the Joint Venture by:

(a) converting their COG$ Token to Donation COG$ (irrevocable);

(b) P2P transfer of their COG$ Token to another eligible Partner;

(c) written surrender submitted through the System; or

(d) death, subject to the inheritance rights in Declaration clause 21.4.

There is no fiat redemption of any COG$ Token or corresponding Beneficial Unit. This is entrenched under clause 1.5(i).

8.3 No Partner may be expelled except by two-thirds Board majority for material breach or court order. Accrued Sub-Trust B entitlements survive cessation of Partner status.

PART 9 — DISPUTE RESOLUTION

9.1 Disputes are raised first through the System with written notice describing the dispute, the provision alleged to be breached, and the remedy sought.

9.2 If not resolved within 30 days, either party may refer the dispute to mediation by an independent mediator agreed by the parties or appointed by the Law Society of South Australia.

9.3 If mediation does not resolve the dispute within 60 days, either party may refer the dispute to binding arbitration under the Commercial Arbitration Act 2011 (SA).

9.4 Nothing in this Part limits a Partner's entrenched right to enforcement proceedings in the Supreme Court of South Australia for breach of trust.

PART 10 — GENERAL PROVISIONS

10.1 Amendment. This Agreement may be amended by Special Resolution (75%) of S-NFT holder Partners through a Partners Poll. No amendment may contravene an entrenched founding principle except through the procedure in clause 1.6.

10.2 Supremacy. This Agreement is the controlling instrument of the Joint Venture. The Declaration is subordinate to this Agreement and must be administered in accordance with this Agreement. The Trustee holds and administers the Declaration on behalf of the Partners and must amend it as directed by the Partners.

10.3 Declaration as Legal Record. The Declaration is the legal trust instrument that gives effect to the Partners' Joint Venture in the Australian legal system. It is maintained by the Trustee as a record of the Partners' agreed rules. It is not an independent source of authority over the Partners.

10.4 Severability. If any provision is held invalid, the remainder continues in full force. If it cannot be read down, it must be severed and the remaining provisions continue unaffected.

10.5 Entire Agreement. This Agreement, together with the Declaration and Sub-Trust Deeds, constitutes the entire operational and legal framework of the Joint Venture. No prior representations, negotiations, or draft instruments form part of this Agreement.

10.6 No Assignment. A Partner's rights under this Agreement are personal and cannot be assigned separately from the corresponding Beneficial Unit and COG$ Token.

10.7 Entry into Force. This Agreement enters into force upon the wet ink signature of the founding Partner on the founding paper copy under the Founding Partner Signature section of this Agreement. Each subsequent Partner enters this Agreement individually and on equal terms upon the generation of their own cryptographic acceptance record under clause 8.1A, or, in the case of admission by P2P transfer, automatic issuance, or Pay It Forward sponsorship, upon acquisition of their COG$ Token and recording of their partial acceptance record under clause 8.1A(e). The Agreement operates as a multi-party contract binding all Partners jointly from the date of each Partner's admission. The Trustee is not a party to this Agreement. The Trustee is bound by the obligations imposed on it by this Agreement through the terms of the Declaration and Sub-Trust Deeds, which the Partners direct the Trustee to maintain in accordance with this Agreement.

10.8 Governing Law and Jurisdiction. This Agreement is governed by the law of South Australia, Australia. The courts of South Australia have non-exclusive jurisdiction to determine any dispute arising from or in connection with this Agreement.

PART 11 — UNITHOLDERS AGREEMENT PROVISIONS

11.1 This Agreement serves as the Unitholders Agreement for the Joint Venture. Each Partner, by holding a Beneficial Unit and the corresponding COG$ Token, is a unitholder bound by this Agreement.

11.2 The Partners propose, hold, govern, and conclude their own meetings, polls, proposals, and other required communications through the System. The Trustee does not convene, chair, moderate, or control these proceedings. This right is absolute and is not dependent on the Trustee's cooperation or facilitation.

11.3 Partners may communicate with each other through the System without restriction, subject only to applicable law. The Trustee has no right to monitor, moderate, or restrict Partner-to-Partner communications except where required by a court order or applicable law.

SCHEDULE — OPERATIONAL CONTROL EVIDENCE REQUIREMENTS

The Trustee must compile and preserve the following evidence on a quarterly basis: (a) Partner engagement metrics — number of active Independence Vault Wallet sessions; number of Partners who accessed the System in the quarter;

number of governance proposals submitted by Partners; number of Partners Polls conducted and participation rates. (b) Partner-initiated operations — number of P2P transfers initiated by Partners; number of class swap conversions; number of distribution election changes; number of donation conversions. (c) Governance outcomes — complete record of all Partners Poll results, including the proposal text, voting period, participation rate, and outcome; evidence that the Trustee implemented each outcome within the specified timeframe. (d) SHA-256 hash attestation log — a complete, time-stamped record of every SHA-256 hash generated by the System for every Partner-initiated action, verifiable by any Partner through their Independence Vault Wallet. (e) Trustee limitation evidence — a record of every instance in which the Trustee exercised its multisignature function, the time between Partner request and Trustee execution, and confirmation that no request was refused without written reasons identifying a specific legal provision.

END OF JOINT VENTURE PARTNERSHIP AGREEMENT

FOUNDING PARTNER SIGNATURE

This Agreement is brought into force by the wet ink signature of the founding Partner below. The founding Partner enters this Agreement in their personal capacity as a Partner of the Joint Venture — not in any capacity as Trustee, Caretaker Trustee, or Declarant under the Declaration. This Agreement is not a deed. It does not require witnessing to be legally effective, but the founding copy is witnessed to establish the date and authenticity of the founding entry.

Every subsequent Partner enters this Agreement individually upon the generation and S-NFT-embedding of their cryptographic acceptance record under clause 8.1A. No further signature, witnessing, or formality is required for any subsequent Partner. Their S-NFT token, with the acceptance record permanently embedded in its on-chain metadata at the moment of minting, is their evidence of membership and binding entry into this Agreement on equal terms with all existing Partners.

This Agreement is not executed by the Trustee. The Trustee is not a party to this Agreement. The Trustee's obligations arise through the Declaration and Sub-Trust Deeds, which the Partners direct the Trustee to maintain in accordance with this Agreement.

Signed as the founding Partner:

Signature: _____ Date: _____/_____/_____

THOMAS BOYD CUNLIFFE

PARTNER

780 Sugarbag Road West, DRAKE 2469 NSW

Founding Partner, COGS of Australia Foundation

Witness Signature: _____ Date: _____/_____/_____

Name: FELICITY CAHILL

Address: 736 Sugarbag Road West, Drake, NSW, 2469

Occupation: VOLUNTEER